

26STCV06467 26STCV06467

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Case Number: 26STCV06467 Hearing Date: September 14, 2026 Dept: 512

HEARING DATE: Mon., September 14, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Carradine v. Carradine, et al. COMP. FILED: 02-26-26

CASE NUMBER: 26STCV06467 X-COMPL. FILED: 05-20-26

NOTICE: OK

PROCEEDINGS: DEMURRER TO CROSS-COMPLAINT

MOVING PARTY: Plaintiff Henry Wolfe Carradine

RESP. PARTY: Defendants Carolyn Carradine and Christopher John Carradine

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Plaintiff Henry Wolfe Carradine's Demurrer to Verified Cross-Complaint is OVERRULED IN PART and SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30 DAYS' LEAVE TO AMEND as to the sixth cause of action and otherwise OVERRULED.

Moving party is ordered to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on September 1, 2026 [X] Late [] None

REPLY: Filed on September 4, 2026 [] Late [] None

ANALYSIS:

I. Background

On February 26, 2026, Plaintiff Henry Wolfe Carradine ("Plaintiff") filed a Verified Complaint for Partition of Sale of Real Property against Defendants Carolyn Carradine and Christopher John Carradine, as individuals and as trustees of the Christopher and Carolyn Carradine 2013 Trust ("Defendants") and Does 1-10.

On May 20, 2026, Defendants filed a Verified Answer and a Verified Cross-Complaint against Karina Carradine and "All Persons Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Properties Described in the Cross Complaint Adverse to Cross-Complainants' Title, or Constituting Any Cloud on Cross Complainants' Title Thereto" and Roes 1-20. The Verified Cross-Complaint alleges 13 causes of action – namely, Breach of Fiduciary Duty, Intentional Misrepresentation, Negligent Misrepresentation, Concealment, False Promise, Conversion, Common Counts – Money Had and Received, Financial Elder Abuse, Rescission/Cancellation of Instrument, Quiet Title, Declaratory Relief, Injunctive Relief, and Imposition of Constructive Trust.

On June 30, 2026, Plaintiff filed the instant Demurrer to Verified Cross-Complaint (the "Demurrer").

On September 1, 2026, Defendants filed an Opposition.

On September 4, 2026, Plaintiff filed a Reply.

II. Procedural Issues

As an initial matter, the Court finds the Opposition was filed and served one day late. (See Code Civ. Proc., § 1005.) However, given the timely Reply, the Court exercises its discretion to address the Opposition on the merits.

III. Legal Standard

"As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is

concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV. Discussion

A. Meet and Confer

Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Thompson Decl.) According to the declaration, Plaintiff's counsel sent a meet and confer letter to defense counsel regarding the issues raised in the Demurrer but no agreement was reached. (Demurrer, Thompson Decl., ¶¶ 2-3.) Based thereon, the Court finds that the meet and confer requirements have been met.

B. Demurrer

Plaintiff demurs to all 13 causes of action in the Cross-Complaint. Defendant demurs to the first, second, fourth, fifth ninth, tenth, twelfth, and thirteenth causes of action for failure to state sufficient facts to constitute a cause of action and for lack of personal jurisdiction over Karina Carradine; to the second, third, fourth, and fifth causes of action for failure to state facts with particularity and uncertainty; to the sixth cause of action as being barred by the requisite statute of limitations, resting upon void grounds, and nonexistent specific property res subject to an action in conversion; and to the seventh cause of action as being barred by the requisite statute of limitations and resting upon void grounds. (Notice of Demurrer; Demurrer, pp. 7-21.)

In Opposition, Defendants contend Plaintiff's personal jurisdiction contentions are erroneous and procedurally misplaced; the first, second, third, fourth, fifth, eighth, ninth, tenth, eleventh, twelfth, and thirteenth causes of action are not time-barred; the second, third, fourth, and fifth causes of action are pled with sufficient particularity; and the sixth and seventh causes of action are timely and adequately pled. (Opp., pp. 1-13.) Finally, Defendants request leave to amend should the Court find any merit to the Demurrer as Defendants "can readily allege additional facts, including the specific date and manner in which Henry first asserted a present ownership interest, and additional detail regarding the parties' communications, to address any concern the Court may have." (Opp., p. 15.)

In Reply, Plaintiff states the Opposition does not dispute that the Court lacks personal jurisdiction over Karina Carradine and emphasizes that the claims alleged in the Cross-Complaint arising from the 2020 deeds are time-barred on the face of the Cross-Complaint; the statute of frauds bars the claims that depend on an unwritten agreement regarding real property; the

second through fifth causes of action are not pleaded with the requisite particularity; the sixth and seventh causes of action are time-barred and independently defective; and the derivative claims fail and leave to amend should be denied. (Reply, pp. 1-10.)

Personal Jurisdiction – Karina Carradine

As part of the Demurrer, Plaintiff contends the Court should sustain the Demurrer on various causes of action on the grounds that the Court lacks personal jurisdiction over another named cross-defendant, Karina Carradine. The Court does not find Plaintiff has demonstrated standing to bring a personal jurisdiction challenge on behalf of a separately named cross-defendant Karina Carradine. Moreover, a demurrer is not the appropriate vehicle to challenge personal jurisdiction under Code of Civil Procedure section 430.10.

Thus, the Court does not find Plaintiff has properly raised contentions regarding Karina Carradine are adequate grounds for the Court to sustain the demurrer as to any cause of action against Karina Carradine. Based thereon, the demurrer as to Karina Carradine is OVERRULED.

Statute of Frauds

Civil Code section 1624 states that certain contracts are invalid unless they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent. These contracts include "[a]n agreement for the leasing for a longer period than one year, or for the sale of real property, or of an interest therein; such an agreement, if made by an agent of the party sought to be charged, is invalid, unless the authority of the agent is in writing, subscribed by the party sought to be charged." (Civ. Code, § 1624, subd. (a)(3).)

Here, Plaintiff demurs to the first, second, fourth, fifth, ninth, tenth, eleventh, twelfth, and thirteenth causes of action on the grounds they rely on an unenforceable oral agreement and are thus barred by the statute of frauds.

However, the Court finds the Cross-Complaint rests on allegations of fraud or voidness based on fraud and thus is not barred on its face by the statute of frauds. (See *Tenzer v. Superscope* (1985) 39 Cal.3d 18, 28-31.) The Court agrees with the Supreme Court of California's rationale in *Tenzer* and finds that, here, applying the statute of frauds to the causes of action raised in the Cross-Complaint would allow the statute of frauds to "be made the instrument of shielding, protecting or aiding the party who relies upon it in the perpetration of a fraud or in the consummation of a fraudulent scheme." (Id., at p. 30.) The Court will not take such an action.

Thus, the Court does not find that any of the causes of action are barred on their face by the statute of frauds.

First Cause of Action – Breach of Fiduciary Duty

To establish a cause of action for breach of fiduciary duty, plaintiff must plead " '(1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.' " (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 932, citation omitted.) A fiduciary relationship requires that a relationship existing between parties to a transaction wherein one of the parties is duty bound to act with the utmost good faith for the benefit of the other party. (*Wolf v. Superior Court* (2003) 107 Cal.App.4th 25, 29.) A relationship ordinarily exists when " 'a confidence is reposed by one person in the integrity of another, and ... the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent.' " (*Ibid.*, citation omitted.)

Here, the Cross-Complaint alleges that Plaintiff, who is Defendants' son, owed Defendants a fiduciary duty as trustee of Defendants' trust; Plaintiff breached those duties by "asserting a present ownership interest in the Properties contrary to his

agreement with, and representations to, the" Defendants; and Defendants suffered damages from these breaches in no less of \$3,558,333, including the value of the interests in the Properties that Plaintiff now claims to own. (Cross-Compl., pp. 9-10.)

Thus, the Court finds the Cross-Complaint alleges sufficient facts to state the first cause of action.

Contrary to Plaintiff's contentions, the Court does not read the first cause of action to be based on the recording of the subject property deeds or purchase of the house in Austria themselves; rather, the Cross-Complaint states Plaintiff breached his fiduciary duties by asserting an ownership interest in the subject properties following their purchase and/or the deeds. The Cross-Complaint does not allege dates for when this specific breach occurred except February 2026 when Plaintiff filed the instant action. (Cross-Compl., p. 8.) As such, the Court does not find the requisite statute of limitations for breach of fiduciary duty bars the instant claim given that the face of the Cross-Complaint does not definitively state when the alleged breaches occurred and/or states that they occurred earlier this year. (See *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881 [" 'A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.' It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred"], citations omitted.)

Thus, the Demurrer is OVERRULED as to the first cause of action.

Second, Third, Fourth, and Fifth Causes of Action – Fraud (Intentional Misrepresentation, Negligent Misrepresentation, and Concealment) and False Promise

The elements of fraud are: " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 184, citing *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) A cause of action for fraud must be " 'pled specifically; general and conclusory allegations do not suffice. ... " 'This particularity requirement necessitates pleading facts which " 'show how, when, where, to whom, and by what means the representations were tendered.' " " " (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184, citing *Lazar*, supra, 12 Cal.4th at p. 645.)

The elements of a cause of action for negligent misrepresentation include " '[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage.' " (*Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc.* (2004) 115 Cal.App.4th 1145, 1154.)

"A plaintiff may assert a fraudulent concealment cause of action based on conduct occurring in the course of a contractual relationship if the elements of the claim can be established independently of the parties' contractual rights and obligations, and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 13.)

"[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred (but see generally fns. 3 & 5 at pp. 19, ante, & 23, post) unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Rattagan*, supra, 17 Cal.5th at pp. 20-21.)

"Promissory fraud thus consists of making a promise without the present intention to perform it, i.e., misrepresenting the speaker's then-present intentions." (*Yield Dynamics, Inc. v. TEA Systems Corp.* (2007) 154 Cal.App.4th 547, 575, emphasis in original.)

“ ‘A promise made without any intention of performing it’ constitutes actual fraud.” (Church of Merciful Savior v. Volunteers of America, Inc. (1960) 184 Cal.App.2d 851, 858.) “Civil Code section 1566 provides that consent to a contract is voidable when obtained by, among other things, fraud. Civil Code section 1571 distinguishes between actual fraud and constructive fraud.... Civil Code section 1572 is limited to acts committed by one party to a contract with intent to deceive another party to the contract or to induce someone to enter into a contract.” (Masters v. San Bernardino County Employees Retirement Assn. (1995) 32 Cal.App.4th 30, 41.)

Here, the Cross-Complaint alleges that Plaintiff, in or around November 2020, misrepresented to Defendants that executing deeds to certain of the subject properties would keep the properties in the family following Defendants’ death; further, the Cross-Complaint alleges that Plaintiff, in early 2023, falsely promised or misrepresented that he would hold title to one of the subject properties – the house in Austria – but the house would belong to Defendants. (Cross-Compl., pp. 10-13.) At the time the promises/representations were made, Plaintiff knew they were false, intended to claim a present ownership interest in the properties and take interest in the properties, and intended to refuse to allow Defendants access to the Austrian guesthouse despite assurances. (See Cross-Compl., pp. 10-13.) Defendants reasonably relied on these representations given that Plaintiff was their son and they believed they all had a close relationship and sustained at least \$3,558,333 damages from the false promises representations. (Cross-Compl., pp. 10-13.) Finally, the Cross-Complaint alleges that Defendants learned of Plaintiff’s breach upon the filing of the instant action. (Cross-Compl., p. 8.)

Thus, the Court finds the Cross-Complaint states sufficient facts to state the second, third, fourth, and fifth causes of action with adequate heightened particularity.

Accordingly, the Demurrer is OVERRULED as to the second, third, fourth, and fifth causes of action.

Sixth Cause of Action – Conversion

“ ‘ ‘Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.’ ” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.)

“ ‘Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment.’ [Citation.]” (PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal.App.4th 384, 395.) “California cases permitting an action for conversion of money typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others.” (Id., at p. 396.) “In contrast, actions for the conversion of money have not been permitted when the amount of money involved is not a definite sum.” (Ibid.)

Here, the Court finds the Cross-Complaint’s facts do not, on their face, demonstrate the claim is barred by the requisite statute of limitations. The Cross-Complaint states the subsection conversion of \$1,000,000 occurred “in or around early 2023,” and the Cross-Complaint was filed on May 20, 2026. (Cross-Compl., pp. 8-9, 10, 13-14.) Given the generality of the Cross-Complaint’s 2023 reference and that May could be classified as “early” in the year, the Court does not find this cause of action is necessarily barred by the three-year statute of limitations on the face of the Cross-Complaint. (See Code Civ. Proc., § 338, subd. (c); Lockley, supra, 91 Cal.App.4th at p. 881 [“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred”], citations omitted.)

However, the Court finds the Cross-Complaint alleges Defendants gave Plaintiff \$1,000,000 to be used for purchase of the house in Austria, and Plaintiff used that sum to pay for the house in Austria that cost \$815,000. (Cross-Compl., pp. 8-9, 13-14.)

Thus, the Cross-Complaint fails to state sufficient facts to constitute a conversion cause of action given that the specific sum of \$1,000,000 was used for the alleged intended purpose.

Accordingly, the Demurrer is SUSTAINED as to the sixth cause of action.

Seventh Cause of Action – Common Count

The required elements of a common count claim are “(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment. A cause of action for money had and received is stated if it is alleged the defendant is indebted to the plaintiff in a certain sum for money had and received by the defendant for the use of the plaintiff.” (Farmers Insurance Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460, citations omitted.)

“A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable.” (McBride v. Boughton (2004) 123 Cal.App.4th 379, 394.)

Here, the Court finds the common count cause of action is derivative of and/or seeking the same recovery demanded in other causes of action that the Court has overruled the Demurrer to and is based on the same facts. (See McBride, supra, 123 Cal.App.4th at p. 394.)

Thus, the Demurrer is OVERRULED as to the seventh cause of action.

Eighth Cause of Action – Elder Abuse

Welfare and Institution Code section 15610.30, subdivision (a) states, in pertinent part: “(a) ‘Financial abuse’ of an elder or dependent adult occurs when a person or entity does any of the following: (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.”

Welfare and Institution Code section 15610.30, subdivision (b) states: “A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.”

“[U]nder subdivision (b) of section 15610.30, wrongful conduct occurs only when the party who violates the contract actually knows that it is engaging in a harmful breach, or reasonably should be aware of the harmful breach.” (Paslay v. State Farm General Ins. Co. (2016) 248 Cal.App.4th 639, 658.)

“[A] party may engage in elder abuse by misappropriating funds to which an elder is entitled under a contract.” (Id., at p. 656.)

Here, the Demurrer’s sole challenge to this cause of action is on statute of limitations grounds. (Demurrer, p. 9.) However, the Court finds that Cross-Complaint pleads enough facts constituting financial abuse of an elder in 2023 and/or 2026 to not necessarily bar the eighth cause of action by the four-year statute of limitations. (See Welf. Code, § 15657.7 [“An action for damages pursuant to Sections 15657.5 and 15657.6 for financial abuse of an elder or dependent adult, as defined in Section 15610.30, shall be commenced within four years after the plaintiff discovers or, through the exercise of reasonable diligence, should have discovered, the facts constituting the financial abuse”]; Lockley, supra, 91 Cal.App.4th at p. 881.)

Thus, the Demurrer is OVERRULED as to the eighth cause of action.

Ninth Cause of Action – Rescission/Cancellation of Instrument

A party to a contract may rescind the contract in certain circumstances, including where the contract is unlawful; where consent of the party rescinding to the contract was given by mistake, duress, menace, fraud, or undue influence; or where the public interest will be prejudiced by permitting the contract to stand. (Civ. Code, § 1689, subd. (b).)

To effect the rescission of a contract, a party to the contract must:

[P]romptly upon discovering the facts which entitle him to rescind if he is free from duress, menace, undue influence or disability and is aware of his right to rescind:

(a) Give notice of rescission to the party as to whom he rescinds; and

(b) Restore to the other party everything of value which he has received from him under the contract or offer to restore the same upon condition that the other party do likewise, unless the latter is unable or positively refuses to do so.

When notice of rescission has not otherwise been given or an offer to restore the benefits received under the contract has not otherwise been made, the service of a pleading in an action or proceeding that seeks relief based on rescission shall be deemed to be such notice or offer or both.

(Civ. Code, § 1691.)

“When a contract has been rescinded in whole or in part, any party to the contract may seek relief based upon such rescission by (a) bringing an action to recover any money or thing owing to him by any other party to the contract as a consequence of such rescission or for any other relief to which he may be entitled under the circumstances.” (Civ. Code, § 1692.)

Here, the Cross-Complaint states the deeds to the properties, which were entered into in 2020 and 2023, were procured by fraud, duress, coercion, and/or undue influence, and Defendants gave notice of rescission and offer to restore the benefits by serving the summons and Cross-Complaint on Plaintiff. (See Cross-Compl., pp. 10-13, 15-16.) The Cross-Complaint also alleges that Defendants learned of Plaintiff’s fraud/breach upon the filing of the instant action. (Cross-Compl., p. 8.)

Thus, the Court finds the Cross-Complaint states sufficient facts to constitute the ninth cause of action.

As such, the Demurrer is OVERRULED as to the ninth cause of action.

Tenth Cause of Action – Quiet Title

A cause of action for quiet title requires the following elements to be set forth in a verified Complaint: (1) description of the property; (2) plaintiff’s title or interest and the basis; (3) defendant’s asserting adverse claim or antagonistic property interest; (4) date as of which the determination is sought; and (5) prayer for determination of title. (Code Civ. Proc., § 761.020.)

Here, the Demurrer’s sole challenge to this cause of action is on statute of limitations grounds. (Demurrer, pp. 6-7.) “Since there is no statute of limitations governing quiet title actions ... it is ordinarily necessary to refer to the underlying theory of

relief to determine which statute applies.” (Muktarian v. Barmby (1965) 63 Cal.2d 558, 560.) The underlying theories in this action for the quiet title action that have not been sustained in the Demurrer provide that the instant quiet title action is timely as well. Moreover, the Cross-Complaint alleges the Plaintiff’s adverse claim to the subject properties was not known to Defendants until 2026 when Plaintiff filed the instant action. (Cross-Compl., p. 8.)

As such, the Court does not find that the Cross-Complaint is necessarily barred on its face as to the tenth cause of action on statute of limitations grounds. (Lockley, supra, 91 Cal.App.4th at p. 881 [“ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred”], citations omitted.)

Thus, the Demurrer is OVERRULED as to the tenth cause of action.

Eleventh, Twelfth, and Thirteenth Cause of Action – Declaratory Relief, Injunctive Relief, Imposition of a Constructive Trust

Here, the sole challenge Plaintiff raises to the eleventh, twelfth, and thirteenth causes of action is on statute of limitations grounds. (See Demurrer, pp. 9, 11, 14, 21.) However, as discussed above, the Court finds at least some of the causes of action upon which the eleventh, twelfth, and thirteenth causes of action derive are not demurrable and/or barred on statute of limitations grounds. As such, the Court does not find that these derivative causes of action are necessarily barred by any statutes of limitation either.

Thus, the Demurrer is OVERRULED as to the eleventh, twelfth, and thirteenth causes of action.

Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman, supra, 18 Cal.3d at p. 348.)

As this is the first demurrer to the operative cross-complaint, and Defendants request leave to amend in the Opposition, the Court finds leave to amend appropriate at this time.

Thus, the Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action.

V. Conclusion & Order

Based on the foregoing, Plaintiff Henry Wolfe Carradine’s Demurrer to Verified Cross-Complaint is OVERRULED IN PART and SUSTAINED IN PART.

The Demurrer is SUSTAINED WITH 30 DAYS’ LEAVE TO AMEND as to the sixth cause of action and otherwise OVERRULED.

Moving party is ordered to give notice.